

W O R T H C L A R K R E A L T Y

Small Claims Court

Preparation Packet

Prepared for
Javon Williams & Jessica Cordero

727 S Sycamore Street · Ottawa, KS 66067
Earnest Money Dispute · \$500.00

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OVERVIEW

What This Packet Is For

The seller of the home you were purchasing has refused to sign the Cancellation and Mutual Release Agreement. Because of that refusal, Security 1st Title is legally unable to return your \$500 earnest money deposit without a court order.

This packet walks you through exactly what you need to do to file in Small Claims Court, get in front of a judge, and obtain that order. You do not need a lawyer. This process is designed for everyday people to handle on their own, and your documentation is strong.

YOUR CASE

What Happened and When

The following timeline shows that you followed every step correctly within your contractual inspection period.

DATE	EVENT
August 3, 2026	Purchase contract signed. A \$500 earnest money deposit was placed with Security 1st Title.
August 13, 2026	Inspection Notice submitted. Buyers formally offered to renegotiate and requested correction of six conditions: roof replacement, three electrical repairs (GFCI outlets and bedroom light), radon mitigation, and removal of a walnut tree.
August 15, 2026	Seller responded with a counter-offer covering only two items: a \$5,000 contribution toward a new roof and radon mitigation up to \$850. The three electrical safety items and walnut tree were not addressed. No agreement was reached.
August 16, 2026	Buyers signed a Cancellation and Mutual Release Agreement directing the \$500 earnest money be returned. Seller refused to sign.
Present	Seller continues to withhold signature. Security 1st Title requires either the seller's signature or a court order before any funds can be disbursed.

FILING INSTRUCTIONS

Step by Step: How to File

1 Go to the Franklin County Courthouse

Franklin County District Courthouse
301 S Main Street, Ottawa, KS 66067
Phone: (785) 229-3410

Hours: Monday through Friday, 8:00 AM to 5:00 PM

Go to the clerk's office and tell them:

SAY THIS

"I need to file a Small Claims petition to get a court order releasing my earnest money deposit."

2 Request Form SC-100 (Small Claims Petition)

The clerk will hand you a petition form. Fill it out using the following information exactly:

Plaintiff (you): Javon Williams and Jessica Cordero

Defendant (seller): Joni M. Scribner

Amount claimed: \$500.00

Reason for claim: Copy the statement below into the reason field on the form.

3 Copy This Statement onto the Form

PASTE THIS INTO THE REASON FIELD

We entered into a purchase contract dated August 3, 2026 for the property located at 727 S Sycamore Street, Ottawa, KS 66067. We deposited \$500 in earnest money with Security 1st Title. During the contractual inspection period, we submitted a formal Inspection Notice and Offer to Renegotiate requesting correction of six conditions, including electrical safety hazards. The seller responded with a partial counter-offer covering only two of the six requested items and declined to address the safety issues. No full agreement was reached. On August 16, 2026, we signed a Cancellation and Mutual Release Agreement requesting return of our \$500 deposit. The seller has refused to sign. Security 1st Title has informed us they are unable to disburse the funds without the seller's signature or a court order. We respectfully request the court issue an order directing Security 1st Title to release the \$500 earnest money deposit to Javon Williams and Jessica Cordero.

4 Pay the Filing Fee and Get Your Hearing Date

Pay the filing fee at the clerk's window. For claims under \$500, the fee is typically between \$35 and \$50. Keep your receipt.

The clerk will assign you a hearing date, usually within three to six weeks. Write it here:

Hearing Date: _____ **Time:** _____

Courtroom: _____

PREPARATION

Documents to Bring

Print three complete sets of the following documents: one for the judge, one to hand to the defendant (or her attorney), and one to keep for yourself.

- **Document 1:** Inspection Notice dated August 13, 2026. This shows you properly exercised your right to renegotiate within the inspection period.
- **Document 2:** Your Resolution of Unacceptable Conditions dated August 13, 2026. This shows all six items you requested, including the three electrical safety concerns the seller refused to fix.
- **Document 3:** Seller's Counter-Resolution dated August 15, 2026. This shows the seller only agreed to two of six items and that no full agreement was reached.
- **Document 4:** Cancellation and Mutual Release Agreement dated August 16, 2026, signed by both buyers. The seller signature line is blank. This is the document the title company needs countersigned in order to release your funds.

THE HEARING

What to Say to the Judge

When the judge asks you to explain your situation, keep it brief and clear. The documents will do most of the work. Here is a statement you can read or reference:

YOUR STATEMENT

"Your Honor, we entered into a contract to purchase a home at 727 S Sycamore Street in Ottawa. We paid a \$500 earnest money deposit, which is currently held by Security 1st Title.

During our inspection period, we found several issues with the property, including electrical safety hazards. We followed the proper process and submitted a formal renegotiation request for six repairs. The seller agreed to only two of them and would not address the safety concerns.

Because we could not reach a full agreement, we exercised our contractual right to cancel. We signed the Cancellation and Mutual Release Agreement on August 16th requesting our deposit be returned. The seller has refused to sign.

Security 1st Title has told us they cannot release our \$500 without either the seller's signature or a court order. We are simply asking the court to issue that order so we can receive the money that is rightfully ours."

If the Judge Asks You Questions

"Were you within your inspection period?" Yes. The contract was signed August 3rd and we cancelled on August 16th.

"Did you give the seller a chance to address the issues?" Yes. We submitted a formal renegotiation request. The seller countered but would not agree to all six items.

"Did you sign the cancellation form?" Yes. Both of us signed it. The seller refused to sign their portion.

"Who is holding the money?" Security 1st Title is holding the \$500 and has confirmed they need a court order to release it.

Y O U R A G E N T

Questions? Reach Out.

If anything comes up before your hearing or you need additional documents, contact your agent directly.

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Your paperwork is solid. You followed every step correctly. Trust the process.